

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201503659	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/01/2015 9:45 PM	Location of Incident: 3823 Richmond Avenue; Over the telephone.	18 Mo. SOL 11/1/2016	Precinct: 123
Date/Time CV Reported Fri, 05/01/2015 11:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/08/2015 11:03 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Velez	22734	953525	123 PCT
2. POM Scott Zeitler	03301	949827	123 PCT
3. POF Valerie Matteo	04188	950848	123 PCT
4. SGT Joseph Padula	04804	933137	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Scott Zeitler	Discourtesy: PO Scott Zeitler spoke discourteously to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	A . Unsubstantiated
B . POM Scott Zeitler	Abuse: PO Scott Zeitler searched § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	B . Substantiated
C . POM Scott Zeitler	Abuse: PO Scott Zeitler refused to provide his shield number to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	C . Unsubstantiated
D . POM Scott Zeitler	Abuse: PO Scott Zeitler frisked § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	D . Substantiated
E . POM Richard Velez	Discourtesy: PO Richard Velez acted discourteously towards § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	E . Unsubstantiated
F . POM Richard Velez	Abuse: PO Richard Velez refused to provide his name and shield number to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.	F . Unsubstantiated
G . SGT Joseph Padula	Discourtesy: Sgt. Joseph Padula acted discourteously toward § 87(2)(b) over the phone.	G . Exonerated
H . POF Valerie Matteo	Discourtesy: PO Valerie Matteo acted discourteously toward § 87(2)(b) over the phone.	H . Exonerated
I . SGT Joseph Padula	Abuse: Sgt. Joseph Padula refused to provide his name and shield number to § 87(2)(b) over the phone.	I . Unsubstantiated

Case Summary

On May 1, 2015, at approximately 9:45 p.m., § 87(2)(b) was retrieving his wallet from the driver's side of his vehicle, which was parked in front of 3823 Richmond Avenue on Staten Island, when PO Richard Velez and PO Scott Zeitler ran a red light, and allegedly almost struck § 87(2)(b) with their vehicle. § 87(2)(b) began yelling at the officers, at which point PO Zeitler allegedly stated, "You think you're a tough guy, you want to talk shit?" (**Allegation A**). PO Zeitler asked § 87(2)(b) for his ID, but before § 87(2)(b) could retrieve it, PO Zeitler allegedly grabbed § 87(2)(b)'s wallet from his hands, and removed his license from the closed front compartment (**Allegation B**).

§ 87(2)(b) and PO Zeitler began arguing, during which PO Zeitler allegedly stated "fuck you" to § 87(2)(b) a couple of times, and informed him that he would not have been stopped if he had not "talked shit" to the officers (**within Allegation A**). § 87(2)(b) then asked PO Zeitler for his badge number, and PO Zeitler allegedly told § 87(2)(b) that his badge number would be on the summonses he was being issued (**Allegation C**). PO Zeitler then frisked and searched § 87(2)(b) (**Allegation D, within Allegation B**). At the end of the interaction, PO Velez allegedly threw § 87(2)(b)'s license and two summonses to the ground (**Allegation E**). § 87(2)(b) asked PO Velez for his name and shield number but PO Velez allegedly did not provide the information, and instead told § 87(2)(b) that his name and shield number would be on the summonses (**Allegation F**). § 87(2)(b) was issued two summonses, one for § 87(2)(b) and one for § 87(2)(b) (NYPD Documents 05).

Later that day, at approximately 11:30 p.m., § 87(2)(b) called the 123rd Precinct to complain. PO Valerie Matteo, the telephone switchboard operator, transferred § 87(2)(b)'s call to Sgt. Joseph Padula. § 87(2)(b) explained the incident and told Sgt. Padula that he already reported the incident to the Internal Affairs Bureau and CCRB. Sgt. Padula allegedly told § 87(2)(b) that if he had already reported it, he was not going to deal with it and hung up the phone on § 87(2)(b) (**Allegation G**). § 87(2)(b) called the 123rd Precinct five or six more times, and each time PO Matteo would answer and then hang up the phone (**Allegation H**). One of the times he called, Sgt. Padula answered, and § 87(2)(b) requested his badge number, but Sgt. Padula allegedly refused to provide it (**Allegation I**).

Video Footage

- Although the field team recovered video footage from a nearby deli, the cameras were too far away to capture § 87(2)(b)'s interaction with PO Zeitler and PO Velez (B.R. 02).

Attempts to Contact Civilians

- § 87(2)(b)'s girlfriend witnessed part of the incident, but § 87(2)(b) refused to provide her name or contact information, and her contact information was not listed in either of the officer's memo books. Therefore, she could not be contacted for the investigation.
- During his CCRB interview, § 87(2)(b) stated that he needed time to decide if he wanted to mediate his complaint. Three calls and one e-mail were sent to § 87(2)(b) with no response.

Mediation, Civil and Criminal Histories

A Notice of Claim inquiry was submitted on July 6, 2015, and the result is still pending. Since § 87(2)(b) did not respond to inquiries about whether he wanted his complaint mediated, his complaint was investigated. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (B.R. 01).
- PO Zeitler has been a member of the service for five years and this is the first CCRB complaint that has been filed against him.
- PO Matteo has been a member of the service for four years, and has been the subject of one allegation from one previous complaint that was not substantiated. § 87(2)(g) .
- PO Velez has been a member of the service for two years, and has been the subject of four allegations stemming from one prior complaint that has not been substantiated. § 87(2)(g) .
- Sgt. Padula has been a member of the service for 12 years, and has been the subject of nine allegations from four previous complaints, three of which have been substantiated. § 87(2)(g) .

Findings and Recommendations

Pleading of Allegations

- § 87(2)(b) did not allege that an officer searched his pockets, but PO Zeitler admitted to doing so, § 87(2)(g) .

Identification of Subject Officers

- § 87(2)(b) accurately described PO Velez and PO Zeitler, and both officers acknowledged interacting with § 87(2)(b) § 87(2)(g) .
- PO Matteo and Sgt. Padula acknowledged speaking with § 87(2)(b) over the phone at the 123rd Precinct, § 87(2)(g) .

Allegation A: Discourtesy – PO Scott Zeitler spoke discourteously to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

Allegation C: Abuse of Authority- PO Scott Zeitler refused to provide his shield number to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

Allegation E: Discourtesy: PO Richard Velez acted discourteously towards § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

Allegation F: Abuse of Authority: PO Richard Velez refused to provide his name and shield number to § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

§ 87(2)(b) stated that after the officers ran the red light, he yelled at the officers and that PO Zeitler allegedly stated, “You think you’re a tough guy, you want to talk shit?” § 87(2)(b) and PO Zeitler began arguing, during which PO Zeitler allegedly stated “fuck you” to § 87(2)(b) a couple of times. § 87(2)(b) then asked PO Zeitler for his badge number, and PO Zeitler allegedly told § 87(2)(b) that his badge number would be on the summonses they were issuing him because he had “talked shit.” PO Velez then allegedly threw § 87(2)(b)’s license and two summonses onto the ground. § 87(2)(b) asked PO Velez for his name and shield number, and PO Velez allegedly declined to provide it, and instead told § 87(2)(b) that his name and shield number would be on the summonses.

PO Zeitler denied using profanity in his interaction with § 87(2)(b) PO Velez, who was inside the patrol vehicle for a majority of the incident, denied hearing PO Zeitler use profanity. PO Zeitler and PO Velez acknowledged that § 87(2)(b) requested their name and shield numbers

and that they verbally provided it to him. PO Velez denied throwing § 87(2)(b)'s license and summonses to the ground and PO Zeitler denied seeing PO Velez do so.

§ 87(2)(g)

It is therefore recommended that **Allegation A, C, E and F** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority – PO Scott Zeitler searched § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

Allegation D: Abuse of Authority – PO Scott Zeitler frisked § 87(2)(b) in front of 3823 Richmond Avenue on Staten Island.

It is undisputed that PO Zeitler frisked and searched § 87(2)(b). § 87(2)(b) alleged that PO Zeitler took his wallet from his hands, and removed his license from the closed front compartment. § 87(2)(b) also alleged that PO Zeitler frisked the entire side and front of his body from his chest to his feet (See § 87(2)(b)'s CCRB Statement).

When asked during his CCRB statement whether he grabbed § 87(2)(b)'s wallet out of his hand and removed his license, PO Zeitler paused for 11-seconds before finally stating that he could not recall. PO Zeitler admitted to frisking § 87(2)(b) and also volunteered that he had searched each of § 87(2)(b)'s pockets because, "he could have been arrested for his actions." In addition, PO Zeitler acknowledged conducting the frisk even after he determined he would release § 87(2)(b) with summonses (See PO Zeitler's CCRB Statement). PO Velez, who was in the car writing § 87(2)(b)'s summonses for a majority of the incident, denied witnessing PO Zeitler grab § 87(2)(b)'s wallet from him, or frisking and searching § 87(2)(b) (See PO Velez's CCRB Statement).

In instances where an individual has been issued a summons (i.e., the individual has not been arrested), police officers are not permitted to conduct a search of the individual. People v. Reid, 24 N.Y.3d 615, 619-20 (2014). The "search incident to an arrest" doctrine only applies where an arrest has already been made, or at the time of the search, the officer intends to make an arrest. Knowles v. Iowa, 525 U.S. 113 (1998) In order to frisk an individual, an officer must have reasonable suspicion that he is in danger by virtue of the individual being armed. People v. DeBour, 40 N.Y. 2d 210 (1976) (B.R. 04 and B.R. 05).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and D** be closed as **substantiated**.

Allegation G: Discourtesy – Sgt. Joseph Padula acted discourteously toward § 87(2)(b) over the phone.

Allegation H: Discourtesy – PO Valerie Matteo acted discourteously toward § 87(2)(b) over the phone.

Allegation I: Abuse of Authority – Sgt. Joseph Padula refused to provide his name and shield number to § 87(2)(b) over the phone.

§ 87(2)(b) alleged that when he called the 123rd Precinct to complain about this incident, PO Matteo transferred his call to Sgt. Padula, who then hung up on him after § 87(2)(b) informed him that he had already reported the complaint to IAB. § 87(2)(b) called the 123rd Precinct approximately five or six more times thereafter, and each time PO Matteo hung up on him. During one of the phone calls, § 87(2)(b) alleged that Sgt. Padula refused to provide his name and shield number to him (See § 87(2)(b)'s CCRB Statement).

PO Matteo contended that when § 87(2)(b) called the 123rd Precinct, he was cursing and yelling into the receiver. § 87(2)(b) asked to speak with a supervisor, so she provided the phone to Sgt. Padula and walked away from the desk. As she walked back to the desk, she saw Sgt. Padula place the phone receiver down, but was unaware of the circumstances that ended the call. PO Matteo denied overhearing Sgt. Padula refuse to provide his name or shield number to § 87(2)(b). § 87(2)(b) § 87(2)(b) called the precinct several more times; each time PO Matteo answered and § 87(2)(b) would still be cursing and screaming so PO Matteo disengaged the calls. PO Matteo denied that § 87(2)(b) ever asked to make a complaint (See PO Matteo's CCRB Statement).

Sgt. Padula stated that PO Matteo handed him the phone and that § 87(2)(b) complained to him that PO Velez and PO Zeitler issued him a summons after almost hitting him with their car. § 87(2)(b) further informed Sgt. Padula that he had already contacted IAB and CCRB. Beyond telling § 87(2)(b) that he was PO Zeitler's and PO Velez's supervisor and would talk to them about the incident, Sgt. Padula was unable to recall the rest of his conversation with § 87(2)(b) but noted that he only spoke with § 87(2)(b) once for approximately a minute. Sgt. Padula denied refusing to provide his name and shield number to § 87(2)(b) and could not recall if he ever hung up on him (See Sgt. Padula's CCRB Statement).

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation I** be closed as **unsubstantiated**. § 87(2)(g) it is recommended that **Allegations G** and **H** be closed as **exonerated**.

Pod: ____7____

Investigator:	_____	____Lauren Kerstein____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date